

Request Nos. 88, 89, 91, 92, 93, 97, 98, 99, 100, 104, 105, 106, 107, 110, 111, 112, 113:

Defendant provides the same response—Defendant has already produced all documents responsive to this request that are in its possession, custody, or control—without reference to any bates stamped pages or any identifying information for such documents. (See Cal. Code of Civil Procedure §2031.280, subdivision (a), requiring the documents or category of documents be identified with the specific request number to which the documents respond.)

Requests Nos. 101-102: Defendant maintains that they will produce all non-privileged documents in response to these requests. However, according to Plaintiff, Defendant failed to provide any support for their asserted privileges, such as a privilege log, and cannot unilaterally narrow the response to the requests without such support. “The need for a privilege log would arise after a plaintiff properly moved to compel further responses to contest defendant’s conclusory attorney-client and work product objections pursuant to Code Civ. Proc., § 2031, subd. (m). The privilege log would permit the court to determine whether a specific document was or was not privileged.” (*Best Products, Inc. v. Superior Court* (2004) 119 Cal. App. 4th 1181, 1189.) California Code of Civil Procedure §2031.240(b) requires that if the “responding party objects to the demand for inspection the response must both (1) identify withheld items with particularity, and (2) state specific grounds; privilege or work-product claims require sufficient factual information, including a privilege log if necessary.” (*Id.*)

The court DENIES all other requests for further production of documents including responses to Request Nos. 108-109. The court finds that Plaintiff’s request for “all settlement agreements, separation agreements, or releases signed by any current or former Bay City Mechanical employee since February 1, 2015, to resolve any allegations of harassment, discrimination, retaliation, or hostile work environment claims” and “all documents concerning any payment or benefit provided to any Bay City Mechanical employee in exchange for resolving claims of harassment, discrimination, retaliation, or hostile work environment claims since February 1, 2015” do implicate the privacy rights of third parties that requires additional processes to ensure their rights are protected and a general protection order would not appear to lend this protection.

The court finds sanctions appropriate. Pursuant to California Civil Code of Procedure §2031.310(h), “the court *shall* impose a mandatory monetary sanction against any party who unsuccessfully makes or opposes a motion to compel further response to a demand for inspection, unless the court finds that the party subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (*Id.*) Defendant provided not substantial justification for their failure to initially comply with all requests or their subsequent failure on the aforementioned requests. However, the court finds the amount unreasonable and ORDERS Defendant to pay sanctions in the amount of \$500.

3. 9:00 AM CASE NUMBER: C23-01947

CASE NAME: ATHINA HUERTA VS. EAST BAY CARDIOVASCULAR AND THORACIC ASSOCIATES, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL 2ND FURTHER RESPONSES TO PROD OF DOCS, FILED 4/17/26 / PREV. SET ON 9/18/26 IN DEPT 32. RESET IN DEPT 20 FOR THIS HEARING ONLY.**

FILED BY: HUERTA, ATHINA

TENTATIVE RULING:

Plaintiff's Motion to Compel is GRANTED. Defendant is to provide supplemental responses to Request for Production of Documents, Set One, Nos. 36-38 and 44-46 by October 2, 2026. Plaintiff's request for sanctions is also granted but is reduced. Defendant is to pay Plaintiff \$950 by October 2, 2026.

Plaintiff seeks an order to compel Defendant East Bay Cardiovascular and Thoracic Associates, Inc., to provide additional further responses to Plaintiff's Request for Production of Documents, Set One, Numbers 36-38 and 44-46, and to confirm in the further response that Defendant has actually engaged in a proper search for Electronically Stored Information ("ESI") as previously agreed to prior to Plaintiff's first Motion to Compel Further Responses.

Plaintiff filed a Motion to Compel Further Responses on August 27, 2025, which was granted and sanctions ordered by the Court December 12, 2025 (filed December 29, 2025). Defendant submitted a Non-Opposition prior to the hearing stating they did not intend to oppose and that it would "submit supplemental discovery responses as previously agreed upon with Plaintiff's Counsel."

Requests for Production 36-38 and 44-46 seek ESI related to Defendant's witnesses', including Melissa Lacy, Jessica Freitas and Jem DeSanti, communications with or specifically referencing the Plaintiff.

Plaintiff maintains that their communications with Defendant regarding the Requests for Production of Documents indicated that the Defendant had not engaged in a diligent search for all documents as ordered by the court. Defendant maintains that not only did they engage in such a search prior to the court's initial order but also have done so after. In the end, Defendant produces no more documents than they did in response to Plaintiff's requests before any representations were made regarding the nature and degree of any search for ESI.

What confounds the court is why Defendant did not provide verified responses to the discovery requests documenting their search efforts as required by statute and the court's previous order, arguably eliminating the need for this motion. (See Cal. Code of Civ. Proc. §§2031.310, subdivision (a)(2) and 2031.230) Unfortunately, Defendant's failure to do so leaves this court with the specter of specious claims. "The object of verification is to assure good faith in the averments or statements of the party." (*H. G. Bittleston Law and Collection Agency v. Howard* (1916) 172 Cal. 357, 360, quoting *Patterson v. Ely* (1861) 19 Cal. 28; see also *Silcox v. Lang* (1889) 78 Cal. 118, 122.)

The court orders Defendant to provide further verified responses to Plaintiff's Requests for Production of Documents Request Nos. 36-38 and 44-46 by October 2, 2026, which shall include verified statements as to any searches conducted for ESI to adequately respond to Plaintiff's requests.

Here, the court finds sanctions appropriate. “Imposing a monetary sanction against the party that unsuccessfully makes or opposes a motion is mandatory, unless there was substantial justification for the failure to respond or the circumstances make imposing a sanction unjust...If a party then fails to obey the order compelling a response, the judge may make those orders that are just, including imposing a monetary sanction, an issue sanction, an evidence sanction, or a terminating sanction.” (*California Judges Benchbook: Civil Proceedings—Discovery* (Cal CJER 2022), p. 484, §19.12, citing Cal. Code of Civ. Proc. §2031.300, subdivision (c).) Defendant is ordered to pay Plaintiff \$950 in sanctions by October 2, 2026.

4. 9:00 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, FILED 4/1/26 / CONT'D FROM 9/11/26 IN DEPT 32. SET IN DEPT 20 FOR THIS HEARING ONLY.**
FILED BY: D&A TRANS, INC.,
TENTATIVE RULING:

The parties are ORDERED to engage in good faith meet and confer efforts and provide the court with a joint statement identifying any outstanding discovery issues by November 6, 2026. This motion is continued and will be heard on November 12, 2026, 9:00 a.m. in Department 20, if issues are not resolved.

Plaintiff, D&A Trans Inc., seeks a motion to compel further responses to Requests for Production of Documents, Set Two, Nos. 2, 4-8, 10, 12-18, 20, 22-23, 25-26, 29-30, 32-34, 36, and 38-50. This is one of approximately 6 motions to compel that have been filed by the parties requesting court intervention, two of which were already before this judge.

This court disagrees with Plaintiff’s notion that “where counsel initiated meet-and-confer efforts, requested a conference, clarified the dispute, and sought an extension before filing the motion” represents good faith meet and confer efforts. Plaintiff cites *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431, indicating that further discussions are not required if they would be futile. Yet, the parties did not engage in any discussions about Defendant’s responses to Plaintiff’s requests for production thus it would be premature to render further engagements pointless. “Some effort is required in all cases: there is no exception based on speculation that prospects for informal resolution may be bleak.” (*California Judges Benchbook: Civil Proceedings—Discovery* (Cal CJER 2022), p. 32, §2.25, citing *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438.)

There must be a "serious effort at negotiation and informal resolution" and "the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438-1439; See also *Clement v.*